

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Bernstein	Team: Team # 6	CCRB Case #: 201309400	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 10/04/2013 11:29 PM	Location of Incident: 41-01 10th Street and inside of the 114th Precinct stationhouse	18 Mo. SOL 4/4/2015	Precinct: 114
Date/Time CV Reported Mon, 10/07/2013 5:43 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/07/2013 5:43 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Dennis Friendly	00233	930185	PSA 9
2. POM Mikelang Zidor	27521	946412	PSA 9
3. POM Anthony Ricciardi	31089	946207	PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Otniel Figueroa	05196	948965	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . SGT Dennis Friendly	Force: Outside of 41-01 10th Street in Queens, Sgt. Dennis Friendly used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Mikelang Zidor	Discourtesy: Outside of 41-01 10th Street in Queens, PO Mikelang Zidor spoke discourteously to an individual.	B . Exonerated
C . POM Anthony Ricciardi	Force: Outside of 41-01 10th Street in Queens, PO Anthony Ricciardi used pepper spray against § 87(2)(b)	C . Substantiated
D . POM Anthony Ricciardi	Force: At the 114th Precinct stationhouse, PO Anthony Ricciardi hit § 87(2)(b)'s head against a wall.	D . Unsubstantiated

Case Summary

On October 7, 2013, § 87(2)(b) filed this complaint with the CCRB via the agency's on-line website. On October 4, 2013, § 87(2)(b) was stopped outside of 41-01 10th Street in Queens by officers from PSA 9 and the following allegations resulted:

- **Allegation A: Force—Outside of 41-01 10th Street in Queens, Sgt. Dennis Friendly used physical force against § 87(2)(b)**
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation B: Discourtesy—Outside of 41-01 10th Street in Queens, PO Mikelang Zidor spoke discourteously to § 87(2)(b)**
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation C: Force—Outside of 41-01 10th Street in Queens, PO Anthony Ricciardi used pepper spray against § 87(2)(b)**
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- **Allegation D: Force—At the 114th Precinct stationhouse, PO Anthony Ricciardi hit § 87(2)(b)'s head against a wall.**
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) was arrested as a result of this incident. As a result, this case was not eligible for mediation.

Results of Investigation

Civilian Statement

Complainant/victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of the incident. He is a black male, who stands 5'7" tall, weighs 150 pounds, and has brown hair and brown eyes. § 87(2)(b) was a student at the time of the incident.

On-line Complaint

On October 7, 2013, § 87(2)(b) provided a description of this incident when filling out his on-line complaint form (encl. 8A-D). § 87(2)(b) wrote that he was with his neighbor in front of his building when a uniformed officer, identified through investigation as Sgt. Dennis Friendly, approached him and asked for his identification. The officer told § 87(2)(b) he needed to give his "fucking ID." Another officer, identified through investigation as PO Otniel Figueroa, grabbed § 87(2)(b) and § 87(2)(b) tried to run away, but was unsuccessful because an

unspecified officer punched him in the ribs. § 87(2)(b) was then pepper sprayed repeatedly and thrown into a van, where he was pepper sprayed again.

Once at the stationhouse, § 87(2)(b) asked for badge numbers and names and was laughed at and ignored.

CCRB Statement:

On October 22, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 10A-G). His statement was generally consistent with his initial complaint narrative and is summarized below.

On October 4, 2013, at approximately 11:20 p.m., § 87(2)(b) exited his house, located at § 87(2)(b) in Queens. § 87(2)(b) walked his friend to his parked car at 40th Avenue and Vernon Boulevard and then walked back to his apartment. On the way back to his apartment, § 87(2)(b) stopped in a store, where he purchased a clear cup filled with ice. § 87(2)(b) had been carrying a bottle of iced tea and he filled the cup of ice up with the tea. § 87(2)(b) then placed a clear lid on the cup and put a straw into it. § 87(2)(b) did not put any alcohol into the cup.

Near the corner of 41st Avenue and 10th Street, § 87(2)(b) was approached by an unidentified female friend and her four children. § 87(2)(b) spoke with the female and a couple of seconds into the conversation, the female told § 87(2)(b) that she observed a police vehicle on 41st Avenue. § 87(2)(b) looked towards 41st Avenue and saw a marked police van slowly approaching the corner of 41st Avenue and 10th Street. § 87(2)(b) did not think anything of the police vehicle, so he continued his conversation.

Two officers, identified through investigation as Sgt. Friendly and PO Figueroa, then approached § 87(2)(b) on foot. § 87(2)(b) did not indicate if the officers came from the van. Sgt. Friendly asked § 87(2)(b) for identification. § 87(2)(b) asked Sgt. Friendly what probable cause he had to request identification. Sgt. Friendly did not respond to § 87(2)(b)'s question, but instead told him to put his hands behind his back. § 87(2)(b) asked why he needed to put his hands behind his back and said that he was not going to cooperate because he had not done anything wrong. § 87(2)(b) explained to the officers that he was going to walk away, which he proceeded to do.

PO Figueroa moved in front of § 87(2)(b) so that he could not get past him. § 87(2)(b) asked what PO Figueroa was doing, at which point Sgt. Friendly and PO Figueroa each grabbed one of § 87(2)(b)'s arms. At this time, two additional uniformed officers, identified through investigation as PO Anthony Ricciardi and PO Mikelang Zidor, came running over from the same direction that Sgt. Friendly and PO Figueroa had come from.

§ 87(2)(b) tensed up his arms and explained to the officers that his child was upstairs in his apartment. The officers did not respond, but instead kept pulling on § 87(2)(b)'s arms. § 87(2)(b) continued to resist, until Sgt. Friendly punched him in the left side of the ribs once. After § 87(2)(b) was punched, he determined that the officers wanted to hurt him, so he stopped resisting completely. § 87(2)(b) was then handcuffed.

After the first request for his identification, no officer requested § 87(2)(b)'s identification. § 87(2)(b) had his identification on him throughout the interaction. § 87(2)(b) did not indicate where he had his identification or if he offered it to the officers after the first request.

It was only a few seconds between when § 87(2)(b) was initially approached and when he was handcuffed. However, because of the commotion being caused by § 87(2)(b)'s arrest, a group of approximately twenty to thirty people gathered during that time.

After § 87(2)(b) was handcuffed, Sgt. Friendly and PO Figueroa searched him. One of the officers found a bag of marijuana in his back right pocket, but § 87(2)(b) did not recall which officer found the bag.

§ 87(2)(b) was then led across the street by Sgt. Friendly and PO Figueroa, where the police van he had seen earlier was parked. At this time, § 87(2)(b) also observed a black unmarked vehicle at the scene, but there were no additional officers. While § 87(2)(b) was walking to the car, he cursed at the officers, stating, "Fucking bastards. You violated my rights." When § 87(2)(b) was near the police van, he was given to PO Ricciardi.

§ 87(2)(b) did not physically resist when he was led to the police van, however, once he got to the side door of the van, he resisted going inside. PO Ricciardi pushed § 87(2)(b) forward, but § 87(2)(b) repeatedly leaned backwards and moved his body to the side so that he would be up against the door. PO Ricciardi yelled at § 87(2)(b) to go inside and was able to push § 87(2)(b) inside. There were three rows in the van and PO Ricciardi yelled at § 87(2)(b) to go into the back row. § 87(2)(b) yelled back that he should be released with a summons and he did not want to go inside of the van, at which point PO Ricciardi sprayed § 87(2)(b) one time with pepper spray.

The pepper spray caused § 87(2)(b) and multiple officers to cough, although § 87(2)(b) was alone in the police vehicle. When PO Ricciardi sprayed him, he did it while standing outside of the van, but leaning his arm in. § 87(2)(b) was having difficulty breathing and was very anxious being inside of the van. § 87(2)(b) screamed at PO Ricciardi to be allowed to get some air.

PO Ricciardi then pulled § 87(2)(b) out of the police van. § 87(2)(b) was still facing the van and PO Ricciardi leaned him over so that his upper body was face down on the first row of seats and his knees were pushed up against the runner of the van. PO Ricciardi pushed § 87(2)(b)'s face down into the seat.

§ 87(2)(b) was then put back in the van and seated in the second row and PO Ricciardi tried to buckle a seatbelt onto him, but was unsuccessful. PO Ricciardi said to § 87(2)(b) "You're going to go in the back. You're going to calm down." PO Ricciardi then pepper sprayed § 87(2)(b) again.

Throughout the struggle, a number of individuals gathered around the police van. § 87(2)(b)'s brother, § 87(2)(b) repeatedly asked the officers why they were, "fucking with [his] brother." He yelled and cursed at the officers repeatedly because he wanted to distract the officers so that they would not hurt § 87(2)(b). Additionally, there was § 87(2)(b) who § 87(2)(b) only knows as § 87(2)(b) who recorded the incident on his phone. At one point, the officers standing outside of the van pulled out their asps to threaten the crowd, but the asps were never used. The officers repeatedly told the crowd to "shut up."

Almost immediately after § 87(2)(b) was sprayed the second time, PO Figueroa got in the back of the van with § 87(2)(b). PO Ricciardi got into the front passenger's seat, and PO Zidor got into the driver's seat and they drove off.

§ 87(2)(b) was transported to the 114th Precinct. § 87(2)(b) continued to "talk shit." He said, "God is watching you. You're going to pay for this. Someone is gonna do this to your kids or do even worse to you." At the stationhouse, there was a glass partition near the desk and PO Ricciardi pushed § 87(2)(b)'s face against the glass.

§ 87(2)(b) was then placed in the holding cells and was told that he would be released with a summons. The officers took § 87(2)(b)'s identification for the first time at the stationhouse. § 87(2)(b) was also told that he made the situation worse and if he had cooperated, he would have been released at the scene. However, at the stationhouse, officers determined that § 87(2)(b) had an open warrant and he was then put through the system.

About ten minutes after being brought to the stationhouse, an ambulance came to the stationhouse and EMTs asked § 87(2)(b) if he needed medical attention. Because § 87(2)(b) had just been told that he was going to be released, he declined medical attention, but was allowed to wash his own eyes out in the bathroom.

During the interview, § 87(2)(b) provided two videos of the incident via a CD. § 87(2)(b) stated that the videos were recorded by a friend of his known only as § 87(2)(b). § 87(2)(b) identified himself as the individual wearing the peach pants. In the beginning of the second video, § 87(2)(b) is the male in the white shirt. The black officer, identified through investigation as PO Zidor, can be seen pulling out his baton. Additionally, § 87(2)(b) said that when PO Ricciardi quickly puts his hand inside of the police van, it was the second time he pepper sprayed § 87(2)(b).

Arrest Photo:

§ 87(2)(b)'s arrest photo showed no visible injuries (encl. 11).

Attempts to Contact Civilians

On January 27, 2014, and February 7, 2014, voicemails were left for § 87(2)(b) requesting a call back and on February 14, 2014, § 87(2)(b) was contacted and asked to have § 87(2)(b) contact the CCRB. Additionally, between February 14, 2014, and March 20, 2014, § 87(2)(b) was attempted by telephone three times, but on each occasion, § 87(2)(b)'s number was out of service. Between February 7, 2014, and March 20, 2014, three please call letters were sent to § 87(2)(b). To date, § 87(2)(b) has not contacted the CCRB and none of the letters sent to him have been returned stamped, "return to sender" by the United States Postal Service (USPS).

§ 87(2)(b) indicated that the individual who took the video was named § 87(2)(b) and that the female who he was initially speaking with witnessed the whole incident. However, § 87(2)(b) had no additional information on either of them and as such, the investigation had no means to identify or contact these witnesses.

NYPD Statements:

Witness Officer: PO OTNIEL FIGUEROA

- PO Figueroa was § 87(2)(b) old at the time of the incident. He is a Hispanic male, who stands 5'8" tall, weighs 175 pounds, and has brown hair and brown eyes.
- PO Figueroa worked from 11:00 p.m., on October 4, 2013, until 6:35 a.m., on October 5, 2013. He was assigned to Housing Conditions, worked with Sgt. Dennis Friendly, was dressed in uniform, and assigned to an unmarked black Crown Victoria.

Memo Book (encl. 15A-D):

At 11:20 p.m., PO Figueroa noted one male black, § 87(2)(b) stopped for an open container in front of 41-01 10th Street in Queens. § 87(2)(b) had one clear cup of Hennessey in a twelve ounce cup. § 87(2)(b) was asked for identification and said he did not have one. Officers tried to place him in handcuffs, but § 87(2)(b) flailed his arms and prevented arresting officer from handcuffing. O.C. Spray was used on § 87(2)(b) during the incident. He was treated by EMS at 12:05 a.m., but refused medical attention. Upon SILA, five bags of marijuana were recovered from § 87(2)(b)'s front right pants pocket. He also had an open warrant. At 11:29 p.m., PO Figueroa noted one under arrest.

Complaint Report and Arrest Report

PO Figueroa prepared a complaint report (encl. 16A-B) and arrest report (encl. 17A-C) for this incident. The reports listed that § 87(2)(b) was observed with an open container. When asked for identification, § 87(2)(b) stated he had none and PO Figueroa attempted to place § 87(2)(b) in handcuffs, but § 87(2)(b) resisted by flailing his arms. The arresting officer used O.C. spray during incident. § 87(2)(b) was treated by EMS, but refused medical treatment. § 87(2)(b) was found to have an open warrant. Upon a search incident to a lawful arrest, § 87(2)(b) was found to be in possession of marijuana.

§ 87(2)(b) was charged with resisting arrest, drinking out of an open container in public, and unlawful possession of marijuana.

§ 87(2)(b)'s arrest report noted that no force was used against him to effect his arrest.

CCRB Statement:

On June 4, 2014, PO Figueroa was interviewed at the CCRB (encl. 19A-C). His statement was generally consistent with the other officer statements, with only additions, discrepancies, and important information noted below.

Upon approach, § 87(2)(b) said that he was "just drinking" and had Hennessey in his cup. PO Figueroa testified that § 87(2)(b) made this statement before Sgt. Friendly asked what § 87(2)(b) was drinking. PO Figueroa could smell the alcohol upon approach. Sgt. Friendly asked § 87(2)(b) for identification, but § 87(2)(b) said that he did not have any. Sgt. Friendly repeatedly asked § 87(2)(b) to provide identification, but § 87(2)(b) said that he did not need to give the officers anything and that he did not have identification. Sgt. Friendly then explained to § 87(2)(b) that he would be handcuffed and taken to the stationhouse so that he could be identified.

Once Sgt. Friendly told § 87(2)(b) he would be handcuffed, § 87(2)(b) started flailing his arms. PO Figueroa tried to grab § 87(2)(b)'s left arm while Sgt. Friendly tried to grab § 87(2)(b)'s right arm. PO Figueroa got hold of § 87(2)(b)'s arm, but § 87(2)(b) kept moving it around and PO Figueroa was unable to handcuff him. After approximately one to two minutes, PO Figueroa and Sgt. Friendly were able to get handcuffs on § 87(2)(b) by pulling his arms

back. PO Figueroa did not recall Sgt. Friendly punching § 87(2)(b) during this struggle and said he would have recalled something like that.

After § 87(2)(b) was handcuffed, a marked van drove by and must have noticed PO Figueroa and Sgt. Friendly. PO Ricciardi and PO Zidor exited the van and approached. PO Figueroa and PO Zidor led § 87(2)(b) to the responding van. § 87(2)(b) passively resisted going to the van by slightly moving his body and dragging his feet, but no force was used or needed to overcome the resistance.

PO Figueroa placed § 87(2)(b) into the van and put him in the backseat. There were no additional civilians in the van. § 87(2)(b) was verbally combative in the van and PO Figueroa closed the side doors. PO Figueroa then directed his attention to a crowd that had gathered around the van. PO Figueroa was facing away from the van for about one minute, before an officer said something about § 87(2)(b) moving in the van. PO Figueroa turned around and saw that § 87(2)(b) had moved up to the first row of three rear benches and was attempting to get into the front two seats of the van. The driver's door and front passenger's door were locked at this time.

PO Figueroa opened the door and told § 87(2)(b) to get to the back. § 87(2)(b) refused and PO Figueroa closed the side door again. § 87(2)(b) then laid down on the first bench and kicked the window of the side door. § 87(2)(b) kicked the door for about thirty seconds but did not appear to damage the door. PO Figueroa opened the door again and told § 87(2)(b) to stop kicking. PO Figueroa was not sure if § 87(2)(b) kicked him at this point. PO Figueroa went to grab § 87(2)(b)'s legs, but before he was able to, pepper spray came from over his shoulder and hit § 87(2)(b). When the spray was used, § 87(2)(b) was handcuffed and lying on the bench.

The pepper spray also affected PO Figueroa and made him cough. As he was coughing, PO Figueroa closed the door and backed up. PO Figueroa did not observe pepper spray used again. Because of the degree that the pepper spray affected PO Figueroa, he had no further interaction with any civilians at the scene. PO Figueroa got back in his police vehicle and went to the 114th Precinct stationhouse. PO Figueroa did not recall hearing any officer use profanity during the incident.

PO Figueroa did not recall seeing § 87(2)(b) at the stationhouse and did not fingerprint him, despite being his arresting officer. PO Figueroa did paperwork the whole time in the stationhouse.

When presented with the first video of the incident, PO Figueroa identified himself as the officer to the far left, PO Ricciardi as the officer with the glasses standing closest to the camera, Sgt. Friendly on the far right, and PO Zidor furthest back from the camera.

The second video began with people coughing, which PO Figueroa explained was right after pepper spray was used. He identified the officer with the extended baton as PO Zidor. Though PO Figueroa acknowledged hearing the comment in the video, he did not recall PO Zidor saying, "Keep talking shit. Get the fuck out of here, man."

Subject Officer: SGT. DENNIS FRIENDLY

- Sgt. Friendly was § 87(2)(b) old at the time of the incident. He is a black male, who stands 6'0" tall, weighs 205 pounds, and has black hair and brown eyes.
- Sgt. Friendly worked from 9:50 p.m., on October 4, 2013, until 6:47 p.m., on October 5, 2013. He was dressed in uniform, assigned as the Conditions sergeant, worked with PO Otniel Figueroa, was dressed in uniform, and worked out of an unmarked black Crown Victoria.

Memo Book (encl.20A-D):

At 11:20 p.m., Sgt. Friendly noted one male black, § 87(2)(b) stopped in front of 41-01 10th Street in Queens. Sgt. Friendly asked § 87(2)(b) for identification and attempted to place him under arrest, but § 87(2)(b) resisted by flailing his arms and refused to obey a direct order to stop resisting. § 87(2)(b) was sprayed with O.C. spray. EMS came and treated § 87(2)(b) and he refused medical attention. At 11:45 p.m., Sgt. Friendly was on his way to the stationhouse and at 11:55 p.m., he arrived.

CCRB Statement:

On June 5, 2014, Sgt. Friendly was interviewed at the CCRB (encl. 21A-C). His statement was generally consistent with PO Ricciardi's statement, with only additions, discrepancies, and important information noted below.

On October 4, 2013, at approximately 11:20 p.m., Sgt. Friendly was driving on 10th Street in Queens when he observed § 87(2)(b) with a bottle of alcohol and an open container. Sgt. Friendly did not recall what the container looked like or what type of alcohol it was.

Sgt. Friendly and PO Figueroa approached § 87(2)(b) and Sgt. Friendly asked § 87(2)(b) for his identification. § 87(2)(b) said he did not have identification. Sgt. Friendly repeatedly asked § 87(2)(b) to provide identification and asked him if he could have someone from his apartment upstairs bring identification down, but § 87(2)(b) said he could not. Sgt. Friendly told § 87(2)(b) that if he could not provide identification, he would be handcuffed and taken to the stationhouse. § 87(2)(b) maintained that he did not have identification.

Sgt. Friendly told § 87(2)(b) to put his hands behind his back and turn around. § 87(2)(b) refused and Sgt. Friendly grabbed his arm, but § 87(2)(b) started flailing his arm, moving his body, and kicking his legs. PO Figueroa also grabbed one of § 87(2)(b)'s arms.

About ten seconds into the struggle, Sgt. Friendly and PO Figueroa pulled § 87(2)(b)'s arms behind his back and handcuffed him. Sgt. Friendly denied punching § 87(2)(b) at any point. Sgt. Friendly then called for a transport van and almost immediately, PO Zidor and PO Ricciardi arrived in a marked van.

Sgt. Friendly handed § 87(2)(b) off to PO Zidor and PO Ricciardi who took him to their van. On the walk to the van, § 87(2)(b) was going limp and Sgt. Friendly helped the other officers carry him to the van.

§ 87(2)(b) was told to get in the back row, but he did not. § 87(2)(b) cursed and yelled saying that he was not going to go to jail and that he was going to kick the windows of the police vehicle out. Sgt. Friendly did not recall if § 87(2)(b) actually kicked the windows.

Sgt. Friendly was outside of the van, but looking in. At this time, § 87(2)(b) was in a row in the van that he was not supposed to be in, but Sgt. Friendly did not recall which row it was. PO Ricciardi then pepper sprayed § 87(2)(b) once. § 87(2)(b) was attempting to get out of custody by going over the seats in the van prior to being pepper sprayed. § 87(2)(b) was instructed to stop resisting and stay in place, but he would not listen. Sgt. Friendly did not recall if the doors in the front or side of the van were open, but he said that § 87(2)(b) was attempting to get out of custody by moving to the front seats of the van. Sgt. Friendly had not instructed PO Ricciardi to use the pepper spray.

The spray did not appear to affect § 87(2)(b) and § 87(2)(b) kicked at the windows, but Sgt. Friendly was not sure if he actually made contact with the windows. Sgt. Friendly was not sure if § 87(2)(b) was sitting or lying on the seat while kicking.

Pepper spray was then used a second time and Sgt. Friendly said it was used for the same reasons as the first time, which were kicking, yelling, and cursing. Sgt. Friendly added that he thought § 87(2)(b) got close to the front row of the van at one point, but did not actually make it to the front door. Sgt. Friendly did not indicate if this was directly preceding the first or second time the pepper spray was used. PO Ricciardi was the officer who pepper sprayed the second time as well.

§ 87(2)(b) was then transported to the 114th Precinct stationhouse. Sgt. Friendly returned in a different car. At the stationhouse, Sgt. Friendly noted § 87(2)(b)'s pedigree information in the command log, but had no additional interaction with him there. § 87(2)(b) had calmed down and was not physically resisting when Sgt. Friendly saw him in the stationhouse. Sgt. Friendly did not observe any officer push § 87(2)(b) into a wall or use any force against him.

Sgt. Friendly observed the video and identified himself, PO Ricciardi, PO Figueroa, and PO Zidor. During the second video, he confirmed that the van pictured was the van they attempted to put § 87(2)(b) into, and he identified PO Zidor as the officer with the baton out.

Subject Officer: PO ANTHONY RICCIARDI

- *PO Ricciardi was § 87(2)(b) old at the time of the incident. He is a white male, who stands 6'2" tall, weighs 250 pounds, and has brown hair and hazel eyes.*
- *PO Ricciardi worked from 10:00 p.m., on October 4, 2013, until 7:35 a.m., on October 5, 2013. He was assigned to Housing Conditions with PO Mikelang Zidor, was dressed in uniform, and worked out of a marked van, number 9336.*

Memo Book (encl. 13A-C):

At 11:20 p.m., PO Ricciardi noted a male stopped at 41-01 10th Street, backing conditions officers from vehicle number 9646. At 11:29 p.m., PO Ricciardi noted one under for a return on a warrant and resisting arrest. The defendant attempted to kick out the police vehicle's windows and was O.C. sprayed. The defendant attempted to leave the van and was O.C. sprayed again. At 11:41 p.m., PO Ricciardi arrived at the 114th Precinct stationhouse.

CCRB Statement:

On May 15, 2014, PO Ricciardi was interviewed at the CCRB (encl. 14A-D). His statement is summarized below.

On October 4, 2013, at approximately 11:20 p.m., PO Ricciardi and PO Zidor backed a unit that made a stop for an open container. PO Ricciardi did not recall who the officers were that he backed, but it was determined by investigation to be Sgt. Friendly and PO Figueroa.

When PO Ricciardi responded, he saw § 87(2)(b) identified through investigation as § 87(2)(b) stopped on the corner. PO Ricciardi did not recall if § 87(2)(b) was handcuffed at this time. § 87(2)(b) was very agitated that he had been stopped and said that officers should not be bothering him. § 87(2)(b) was cursing, but PO Ricciardi did not recall any specific statements.

When PO Ricciardi arrived, the officers on scene were checking § 87(2)(b) for warrants. The warrant check revealed that § 87(2)(b) had an open warrant and he was placed under arrest. PO Ricciardi did not recall if he was involved in handcuffing § 87(2)(b) or in restraining him when he was handcuffed. PO Ricciardi did not observe any officer use any force on § 87(2)(b) when handcuffing him.

After § 87(2)(b) was handcuffed, PO Ricciardi and PO Zidor escorted him to their marked van across the street. By this point, approximately twelve people gathered around the scene. PO Ricciardi did not recall any physical interference, but the crowd followed the officers and § 87(2)(b) to the police vehicle. § 87(2)(b) dragged his feet and made his body dead weight when escorted to the police vehicle. PO Ricciardi overcame the resistance by pulling § 87(2)(b) by his arm.

PO Ricciardi and PO Zidor led § 87(2)(b) to the side of the van, but § 87(2)(b) resisted going in by making his body dead weight and by putting his leg up against the van's running board. PO Ricciardi pushed § 87(2)(b) into the van.

PO Ricciardi explained that the van has the two front seats and three rear rows. There are also double doors on the side of the van. § 87(2)(b) went into the first row, but the officers wanted him in the rear row, as is protocol. § 87(2)(b) refused to go in the back row. § 87(2)(b) laid on his back in the first row and kicked the van's window on one of the double doors, which was closed. As § 87(2)(b) kicked the window, PO Ricciardi closed the other side of the double door. § 87(2)(b) kicked the door's window about five times. PO Ricciardi then opened one of the the doors and § 87(2)(b) continued to kick while lying on his back. PO Ricciardi then pepper sprayed § 87(2)(b). The pepper spray appeared to work as § 87(2)(b) became compliant and PO Ricciardi as well as additional unidentified officers put § 87(2)(b) in the back row.

PO Ricciardi closed the door and remained outside of the van. § 87(2)(b) then got out of the seat and went into the pathway leading to the front of the van. § 87(2)(b) walked through the pathway and went to the front seats of the van. The doors to the front seat were unlocked and § 87(2)(b) could have gotten out of the front doors. § 87(2)(b) never made it to either of the front doors.

PO Ricciardi as well as other officers then went into the van and grabbed § 87(2)(b). PO Ricciardi pepper sprayed § 87(2)(b) again. PO Ricciardi was not sure exactly where § 87(2)(b) was in the vehicle when he was sprayed the second time, but PO Ricciardi explained that he was somewhere near the front seat, being brought towards the back by the other officers in the van.

After the pepper spray was used again, § 87(2)(b) was calm and was placed in the backseat without further incident.

PO Ricciardi and PO Zidor transported § 87(2)(b) to the 114th Precinct stationhouse. At the stationhouse, PO Ricciardi led § 87(2)(b) in, but did not process his arrest and had no more interaction with § 87(2)(b). PO Ricciardi did not recall if he brought § 87(2)(b) to the desk, but said he normally would and wait there until the arresting officer came.

PO Ricciardi did not know if there was any physical struggle between § 87(2)(b) and any officers at the stationhouse. PO Ricciardi did not push § 87(2)(b)'s head into a glass partition or any wall. There was no physical struggle between PO Ricciardi and § 87(2)(b) at the stationhouse. PO Ricciardi did not recall if § 87(2)(b) was physically or verbally combative at the stationhouse.

At the end of his testimony, video footage was shown to PO Ricciardi. At 2:09 of the second video, PO Ricciardi confirmed he was the white officer near the van. At 2:12, it appears that PO Ricciardi puts his hand in the van, which he confirmed. However, PO Ricciardi was not sure if that was the second time in which he deployed pepper spray.

A member of the crowd then repeatedly stated, "Why you maced him for?" A voice said, "I maced him cause he was getting up." PO Ricciardi said the second statement sounded like his own voice. PO Ricciardi then clarified that when he stuck his hand in the vehicle at 2:12, it was the second time he pepper sprayed § 87(2)(b) as § 87(2)(b) was trying to get out of his seat.

PO Ricciardi then said that prior to the moment he puts his hand in the car, § 87(2)(b) had gotten up from the back seat and the officers had returned him to the back seat. One of the side double doors was closed and the officers were about to close the other door, but § 87(2)(b) then got up and went into the pathway to get out. § 87(2)(b) charged at PO Ricciardi and when § 87(2)(b) was right behind the closed double door, PO Ricciardi pepper sprayed him again. PO Ricciardi said that he had just gotten his timeline confused in his earlier statement. The van's side doors were unlocked even if closed. § 87(2)(b) was still handcuffed at this time.

Subject Officer: PO MIKELANG ZIDOR

- PO Zidor was § 87(2)(b) old at the time of the incident. He is a black male, who stands 5'9' tall, weighs 190 pounds, and has black hair and brown eyes.
- PO Zidor worked from 10:00 p.m., on October 4, 2013, until 6:35 a.m., on October 5, 2013. He was assigned to conditions, worked with PO Anthony Ricciardi, was dressed in uniform, and worked out of a marked van, number 9336.

Memo Book (encl. 22A-C):

At 11:20 p.m., PO Zidor noted one male stopped near 41-01 10th Street in Queens for an open container of alcohol. At 11:39 p.m., PO Zidor noted one under by PO Figueroa. At 11:32 p.m., PO Zidor transported one male black to the 114th Precinct stationhouse. At 11:40 p.m., PO Zidor arrived at the 114th Precinct stationhouse.

CCRB Statement:

On June 6, 2014, PO Zidor was interviewed at the CCRB (encl. 23A-C). His statement was generally consistent with the other officer statements, with only additions, discrepancies, and important information noted below.

§ 87(2)(b) was not in handcuffs when PO Zidor approached. Either Sgt. Friendly or PO Figueroa ran § 87(2)(b)'s name for warrants and the check revealed that § 87(2)(b) had an outstanding warrant. One of the officers told § 87(2)(b) that he would be taken into custody and a physical struggle began. PO Zidor was not involved in the physical struggle, as he conducted crowd control when a crowd of approximately ten people gathered. PO Zidor had his back to § 87(2)(b) and the officers struggling with him and told people in the crowd to stay back. PO Zidor did not see the officers put the handcuffs on § 87(2)(b) and did not see any officer punch § 87(2)(b).

§ 87(2)(b) was placed in handcuffs by an unknown officer and then led to PO Zidor's van across the street. PO Zidor did not escort § 87(2)(b) but he observed that § 87(2)(b) was refusing to walk at times. Once the officers reached the van, the crowd numbered approximately twenty people. Other officers put § 87(2)(b) in the van while PO Zidor conducted crowd control. Some individuals in the crowd ran towards the officers, so PO Zidor pulled out his asp and told the individuals to get back. The crowd did back up, but some members tried to walk around PO Zidor to get to § 87(2)(b). PO Zidor walked in front of these individuals and told them to get back. The crowd was approximately five to seven feet away from PO Zidor and the closest anyone got was about two to three feet away. PO Zidor did not make physical contact with any members of the crowd.

PO Zidor did not recall using any profanity during the incident. PO Zidor added that members of the crowd were yelling and cursing at him, but he did not recall any specific statements they made.

While PO Zidor was conducting crowd control, he smelled pepper spray coming from the van. PO Zidor did not see the pepper spray used. PO Zidor did not observe § 87(2)(b) try to get out of the van.

After about three to four minutes, PO Zidor went back into the police van. Inside the van, PO Zidor felt the effects of pepper spray lingering in the air. PO Zidor did not know who used the pepper spray and was never made aware of who used the pepper spray. PO Zidor was not made aware of why pepper spray was used.

PO Zidor drove the van to the 114th Precinct stationhouse with PO Ricciardi. PO Zidor dropped PO Ricciardi and § 87(2)(b) off at the stationhouse while he stayed in the van. By the time PO Zidor entered the stationhouse, § 87(2)(b) was inside of the holding cells. PO Zidor had no interaction with § 87(2)(b) inside of the stationhouse.

At the conclusion of his testimony, PO Zidor was presented with the video. At the beginning of the second video, PO Zidor said that he was the officer on the corner with his asp extended. PO Zidor added that the crowd was standing behind the individual who was filming the incident.

After reviewing the second video, PO Zidor was asked if he said, "Keep talking shit. Get the fuck out of here." PO Zidor said he did not know and did not hear that in the video. A small portion of the video beginning at approximately 00:49 was replayed for PO Zidor and he confirmed that it

sounded like it was his own voice. At the time the statement was made, people had been threatening the officers and threatening to fight them.

Other Evidence

Video:

§ 87(2)(b) provided video footage of the incident, which he stated he obtained from § 87(2)(b) known only as § 87(2)(b) (encl. 12A-B). There were two videos, one minute and thirty seconds and three seconds, respectively, and they are summarized below.

Video one begins with four officers around § 87(2)(b) who is wearing red pants. There is a female voice and a male voice that can be heard speaking, but the individuals speaking are not on screen. The recording appears to be taking place from about seven to ten feet away from the incident and there are approximately three other civilians gathered on the other side of § 87(2)(b) and an unknown number of civilians behind the camera.

The female voice says the that officers were about to smack him for no reason. She says that an officer asked to see his identification, § 87(2)(b) asked why, and then § 87(2)(b) was instructed to put his hands behind his back. Shortly after she or another female says that an officer was about to smack him for no reason.

There is one small bald officer, identified through investigation as PO Figueroa, one tall white officer, identified through investigation as PO Ricciardi, and two black male officers, identified through investigation as Sgt. Friendly and PO Zidor, all in uniform.

§ 87(2)(b) walks with the officers across the street to the marked van. All four officers escort him and he does not physically resist and cannot be heard verbally resisting. The camera remains on the opposite side of the street as the police van. Voices can be heard speaking about how no officer touched the cup that § 87(2)(b) was drinking out of. One voice then suggests to get rid of the cup and deny that he had ever been drinking anything.

The second video begins on the same side of the street as the police van. Multiple officers appear to be coughing when the video begins. A male's voice can be heard saying, "Now he's pulling out his baton." PO Zidor can be seen with his asp extended, pacing back and forth.

Another male's voice, identified by § 87(2)(b) as § 87(2)(b)'s voice, says, "Fuck y'all niggas. You will not violate my brother like that. Come in the street and get it on." An unidentified officer says, "Stay over there." § 87(2)(b) responds, "I'm battling y'all niggas. If any of y'all niggas use any sticks, I'm punching you all in y'all's face." Shortly thereafter PO Zidor says, "Keep talking shit. Get the fuck out of here, man." PO Zidor makes the statement to someone off the screen, who may have been § 87(2)(b) but the investigation could not definitively determine who PO Zidor spoke to.

PO Ricciardi can then be heard saying, "Get in the back seat," repeatedly. A voice, identified through investigation as § 87(2)(b) says, "I don't understand why y'all putting me in this. You ain't see no weed. You went in my pocket for no reason. I did not act disorderly"

§ 87(2)(b) says that he is going to plead not guilty and have the case thrown out. PO Ricciardi then closes the left side of the van's double door. § 87(2)(b) can then be heard from inside of the car saying, "Imma nut in your mother's face, you fucking homo. Suck my dick, bitch."

Immediately after the aforementioned statement, at approximately 2:09, PO Ricciardi removes an item from his belt with his left hand. He then transfers the item into his right hand. PO Ricciardi does not appear to be looking into the van, but then turns his head towards the van and puts his hand into the right side of the van's double door, which is still open. PO Ricciardi takes his hand out approximately three seconds later and multiple people in the crowd ask him why he pepper sprayed § 87(2)(b). PO Ricciardi turns to the individual recording the incident and says, "Cause he was getting up." PO Ricciardi then gets into the police vehicle in the passenger's seat and yells back in the van, "Sit down!"

The van then activates its lights and sirens and drives away.

NYPD Documents:

The command log entry for § 87(2)(b) noted his physical/mental condition as apparently normal (encl. 24C).

§ 87(2)(b)

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Status of Civil Proceedings

- § 87(2)(b)'s attorney filed a Personal Injury Claim with the Comptroller's Office on his behalf, alleging that officers used excessive force and the unjustified use of pepper spray. The claim is seeking twenty five thousand dollars as redress. As of August 14, 2014, no 50-h hearing had been held (encl. 28.0-28.5).

Civilian Criminal History

- As of June 17, 2014, Office of Court Administration records reveal no criminal convictions for § 87(2)(b) (encl. 27F-I).

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 7).

Subject Officers CCRB History

- PO Ricciardi has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 5).
- PO Zidor has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 6).
- Sgt. Friendly has been a member of the service for eleven years and there are six substantiated CCRB allegations against him (encl. 4A-C):
 - In case number 201001417, allegations of force, an entry and an apartment search, a threat of arrest, and a refusal to provide his name and shield number were substantiated against Sgt. Friendly. Charges were recommended and he received a Command Discipline B for three of the allegations and no disciplinary action was taken with regard to the threat of arrest allegation.
 - In case number 201212831, allegations of a premises entered and searched were substantiated and charges were recommended. The NYPD has yet to reach a disposition or penalty regarding these allegations.

Conclusion

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Identification of Subject Officers

It is undisputed that Sgt. Friendly and PO Figueroa were the first officers to approach § 87(2)(b) and subsequently engage in a physical struggle, before handcuffing him. § 87(2)(b) stated that of the two officers who stopped him, the black officer was the one who punched him and as such, Allegation A is pleaded against Sgt. Friendly.

PO Zidor acknowledged that it was his voice on the video that stated, “Keep talking shit. Get the fuck out of here, man.” As such, Allegation B is pleaded against PO Zidor.

It is undisputed that PO Ricciardi pepper sprayed § 87(2)(b) added that the officer who pepper sprayed him also pushed his face into a glass partition in the stationhouse. Therefore, Allegations C and D are pleaded against PO Ricciardi.

Allegations Not Pleaded

§ 87(2)(b) stated that he was only drinking iced tea when the officer approached him, however, all of the officers were consistent that § 87(2)(b) was drinking alcohol out of an open container and he was arrested for said violation. As such, § 87(2)(b) is disputing his arrest and no stop allegation is pleaded.

§ 87(2)(b) stated that after he was handcuffed, he was frisked and searched, at which time an officer found a bag of marijuana on him. § 87(2)(b)'s arrest report listed that § 87(2)(b) was searched incident to a lawful arrest, at which time marijuana was recovered on him. Because the frisk and search happened after § 87(2)(b) was under arrest, the frisk and search were justifiably conducted incident to arrest and no frisk or search allegation is pleaded.

In § 87(2)(b)'s initial complaint, he stated that Sgt. Friendly cursed at him upon approach and that unidentified officers laughed at him when asked for their names and shields at the stationhouse. However, in his sworn statement, § 87(2)(b) made neither allegation and thus they are not pleaded.

Investigative Findings and Recommendations

Allegation A: Force—Outside of 41-01 10th Street in Queens, Sgt. Dennis Friendly used physical force against § 87(2)(b)

§ 87(2)(b) consistently alleged that Sgt. Friendly punched him once in the ribs after § 87(2)(b) tried to get away from the officers. § 87(2)(b) acknowledged that he was actively resisting by pulling his arms away from the officers and trying to walk away from them.

Sgt. Friendly denied punching § 87(2)(b) and PO Figueroa did not recall seeing Sgt. Friendly punch § 87(2)(b). PO Ricciardi and PO Zidor did not see Sgt. Friendly punch § 87(2)(b). However, all of the officers interviewed stated that § 87(2)(b) flailed his arms and tried to pull away from the officers once he was told he was going to be taken into custody.

In the video, one or two female voices stated that an officer was “about to smack” § 87(2)(b) despite § 87(2)(b) not doing anything.

§ 87(2)(b) denied medical attention while in police custody and did not allege any injury from the punch.

It is undisputed that § 87(2)(b) was actively resisting being handcuffed and attempted to get away from the officers. § 87(2)(b), § 87(2)(g)

Allegation B: Discourtesy—Outside of 41-01 10th Street in Queens, PO Mikelang Zidor spoke discourteously to § 87(2)(b)

In the video, PO Zidor says to § 87(2)(b) or individuals off screen, "Keep talking shit. Get the fuck out of here, man." PO Zidor makes this comment after members of the crowd made many discourteous and threatening statements. Directly prior to PO Zidor's aforementioned statement, § 87(2)(b) said, "I'm battling y'all niggas. If any of y'all niggas use any sticks, I'm punching you all in y'all's face."

PO Zidor stated that at the time the statement was made, there was a crowd of about twenty people, about five to seven feet away from him and the other officers. Some members of the crowd were charging at PO Zidor and he needed to brandish his asp in order to ensure that members of the crowd stayed back. § 87(2)(b) confirmed that a large crowd had gathered and at least § 87(2)(b) was yelling and cursing at officers.

An officer may use profanity in order to gain compliance during a stressful street encounter. NYPD v. Court (Aug. 2004) (encl. 1A-I).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C: Force—Outside of 41-01 10th Street in Queens, PO Anthony Ricciardi used pepper spray against § 87(2)(b)

PO Ricciardi stated that he wanted to get § 87(2)(b) into the backseat of the van, as is protocol. However, § 87(2)(b) refused to go to the back seat, which § 87(2)(b) corroborated in his testimony. PO Ricciardi stated that § 87(2)(b) then laid on the front bench in the van and kicked the vehicle's windows about five times. PO Figueroa and Sgt. Friendly confirmed that § 87(2)(b) was kicking at the windows. PO Ricciardi opened the van doors and pepper sprayed § 87(2)(b) one time. PO Ricciardi said that the pepper spray appeared to work and § 87(2)(b) was placed in the backseat. However, § 87(2)(b) then got up and went into the pathway on the side of the van's benches which leads to the side doors. § 87(2)(b) charged at PO Ricciardi and when § 87(2)(b) was right behind the closed door to the van, PO Ricciardi pepper sprayed him again. PO Ricciardi provided this testimony regarding § 87(2)(b) charging at him only after watching the video of the incident. He initially said that § 87(2)(b) had tried to climb into the front seats of the van and he was pepper sprayed at that time. However, after reviewing the video, PO Ricciardi said that § 87(2)(b) tried to climb to the front seats of the van prior to the first time pepper spray was used. Sgt. Friendly corroborated that § 87(2)(b) did attempt to climb into the front seats prior to the first pepper spray blast.

§ 87(2)(b) said that he resisted being placed in the police van and once he was inside, he refused to go to the backseat, at which point he was pepper sprayed by PO Ricciardi. § 87(2)(b) then alleged that he was pulled out of the van, pushed against the front bench, and then seated in the second row. PO Ricciardi tried to buckle a seatbelt onto § 87(2)(b) but was unsuccessful. PO Ricciardi said to § 87(2)(b) "You're going to go in the back. You're going to calm down." PO Ricciardi then pepper sprayed § 87(2)(b) for a second time.

The video footage begins after the pepper spray was used the first time, as evidenced by the officers coughing around the van. As the video continues, § 87(2)(b) can be heard from inside of the van saying that he will get his charges dismissed, before stating discourteous and offensive comments to PO Ricciardi. At this time, one of the two side doors is closed and PO Ricciardi is standing in the threshold of the opened side door. Directly after a discourteous remark made by § 87(2)(b) PO Ricciardi reaches down to his belt, removes an object with his left hand, determined to be an O.C. spray canister, transfers it to his right hand, and puts it inside of the van. At this point, PO Ricciardi deploys the spray for the second time. Directly prior to its use, PO Ricciardi is not looking inside of the van, and only puts his head towards the van the moment he sticks his hand in the car. At no point does PO Ricciardi appear to be rushing to use the spray or get it off of his belt and when asked why he used the pepper spray by the crowd, PO Ricciardi said, "cause he was getting up."

As stipulated in Patrol Guide Procedure 203-11, officers are tasked to use the minimum necessary force during a police incident (encl. 2A-B). Pepper spray may be used when an officer reasonably believes it is necessary to effect an arrest of a resisting suspect, for self-defense, or to take a resisting emotionally disturbed person into custody. Pepper spray may also be used when a member of service reasonable believes that it is needed to establish physical control of a subject attempting to flee from arrest or custody. (encl. 3A-B).

It is undisputed that PO Ricciardi used pepper spray twice against § 87(2)(b). Based on the § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

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§ 87(2)(b), § 87(2)(g)

Allegation D: Force—At the 114th Precinct stationhouse, PO Anthony Ricciardi hit § 87(2)(b)'s head against a wall.

§ 87(2)(b) stated that PO Ricciardi pushed his head against a glass window at the 114th Precinct stationhouse. PO Ricciardi denied having any direct interaction with § 87(2)(b) at the stationhouse. Sgt. Friendly, PO Figueroa, and PO Zidor did not see PO Ricciardi push § 87(2)(b)'s head against a window or wall at the stationhouse.

§ 87(2)(b) had no documented injury as a result of this force and his arrest photo showed no visible injuries.

§ 87(2)(b), § 87(2)(g)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date